

PUBLIC SERVICES

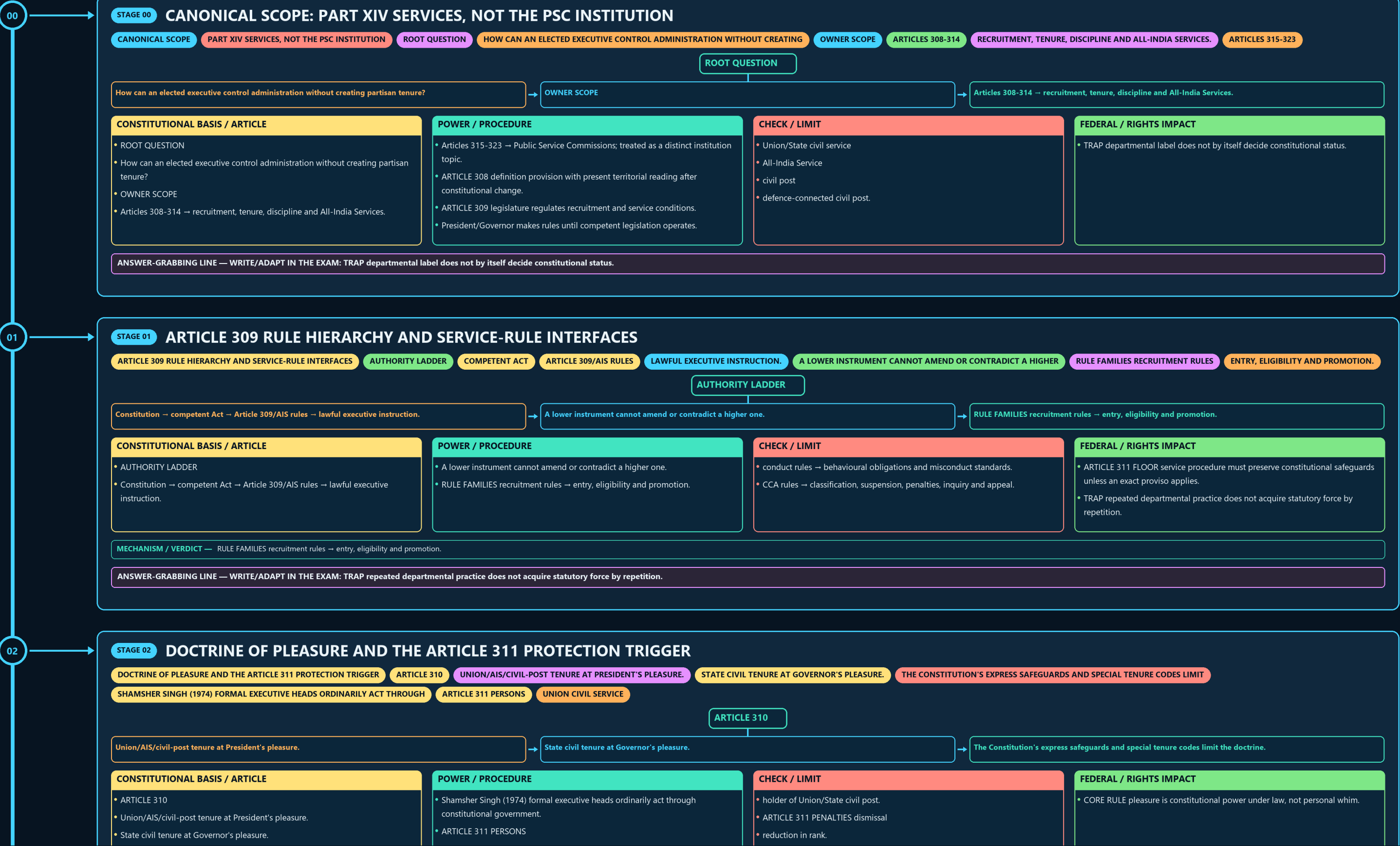
CANONICAL SCOPE: PART XIV → ARTICLE 309 RULE HIERARCHY → DOCTRINE OF PLEASURE AND → ARTICLE 310(2) AND ARTICLES → REGULAR INQUIRY, NATURAL JUSTICE → PENALTY, TERMINATION AND EMPLOYMENT-STATUS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

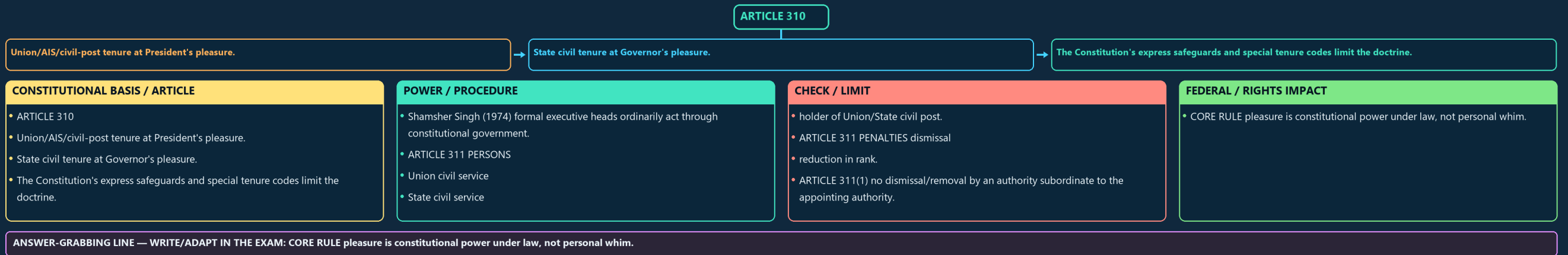
CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02 DOCTRINE OF PLEASURE AND THE ARTICLE 311 PROTECTION TRIGGER

DOCTRINE OF PLEASURE AND THE ARTICLE 311 PROTECTION TRIGGER ARTICLE 310 UNION/AIS/CIVIL-POST TENURE AT PRESIDENT'S PLEASURE. STATE CIVIL TENURE AT GOVERNOR'S PLEASURE. THE CONSTITUTION'S EXPRESS SAFEGUARDS AND SPECIAL TENURE CODES LIMIT SHAMSHER SINGH (1974) FORMAL EXECUTIVE HEADS ORDINARILY ACT THROUGH ARTICLE 311 PERSONS UNION CIVIL SERVICE



03

STAGE 03 ARTICLE 310(2) AND ARTICLES 312A-314 HISTORICAL CLOSURE

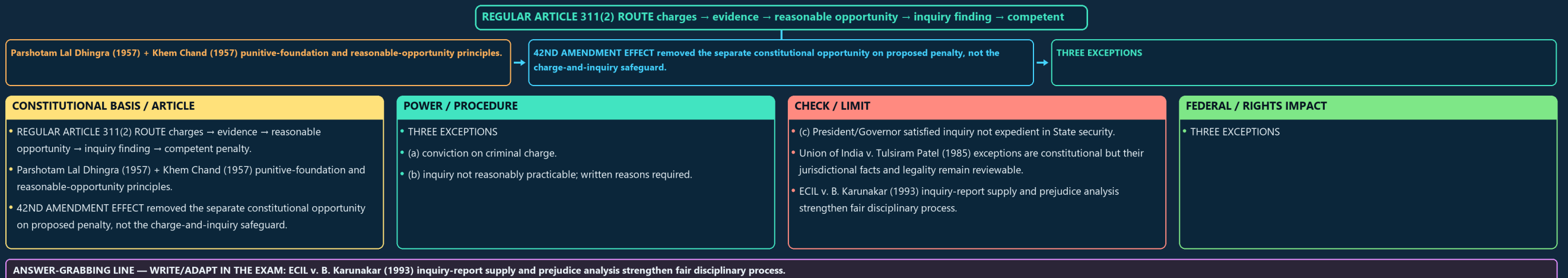
ARTICLE 310(2) AND ARTICLES 312A-314 HISTORICAL CLOSURE ARTICLE 310(2) SPECIALLY QUALIFIED OUTSIDER + AGREED TENURE + CONTRACT MAY PROVIDE COMPENSATION. NOT A GENERAL SEVERANCE GUARANTEE FOR EVERY TEMPORARY OR ARTICLE 312A PARLIAMENT MAY VARY OR REVOKE SPECIFIED FORMER SECRETARY-OF-STATE SERVICE ARTICLE 313 PRE-CONSTITUTION SERVICE LAW CONTINUES SO FAR AS ARTICLE 314 REPEALED BY THE 28TH AMENDMENT, 1972.



04

STAGE 04 REGULAR INQUIRY, NATURAL JUSTICE AND THE THREE CONSTITUTIONAL EXCEPTIONS

REGULAR INQUIRY, NATURAL JUSTICE AND THE THREE CONSTITUTIONAL EXCEPTIONS REGULAR ARTICLE 311(2) ROUTE CHARGES REASONABLE OPPORTUNITY INQUIRY FINDING COMPETENT PENALTY. PARSHOTAM LAL DHINGRA (1957) + KHEM CHAND (1957) PUNITIVE-FOUNDATION 42ND AMENDMENT EFFECT REMOVED THE SEPARATE CONSTITUTIONAL OPPORTUNITY ON THREE EXCEPTIONS



05

STAGE 05 PENALTY, TERMINATION AND EMPLOYMENT-STATUS DISTINCTIONS

05

CONSTITUTIONAL BASIS / ARTICLE

- REGULAR ARTICLE 311(2) ROUTE charges → evidence → reasonable opportunity → inquiry finding → competent penalty.
- Parshotam Lal Dhingra (1957) + Khem Chand (1957) punitive-foundation and reasonable-opportunity principles.
- 42ND AMENDMENT EFFECT removed the separate constitutional opportunity on proposed penalty, not the charge-and-inquiry safeguard.

POWER / PROCEDURE

- THREE EXCEPTIONS
- (a) conviction on criminal charge.
- (b) inquiry not reasonably practicable; written reasons required.

CHECK / LIMIT

- (c) President/Governor satisfied inquiry not expedient in State security.
- Union of India v. Tulsiram Patel (1985) exceptions are constitutional but their jurisdictional facts and legality remain reviewable.
- ECIL v. B. Karunakar (1993) inquiry-report supply and prejudice analysis strengthen fair disciplinary process.

FEDERAL / RIGHTS IMPACT

- THREE EXCEPTIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ECIL v. B. Karunakar (1993) inquiry-report supply and prejudice analysis strengthen fair disciplinary process.

05

STAGE 05

PENALTY, TERMINATION AND EMPLOYMENT-STATUS DISTINCTIONS

PENALTY, TERMINATION AND EMPLOYMENT-STATUS DISTINCTIONS

PENALTIES DISMISSAL MAY CARRY FUTURE-EMPLOYMENT CONSEQUENCES UNDER RULES.

REMOVAL IS DISTINCT

REDUCTION IN RANK IS PUNITIVE DEMOTION.

TERMINATION SIMPLICITER FORM IS NOT DECISIVE; MOTIVE AND FOUNDATION

OTHER ACTIONS SUSPENSION ORDINARILY INTERIM

COMPULSORY RETIREMENT MAY BE PUNITIVE OR NON-PUNITIVE PROBATION/TEMPORARY EXIT

STATUS SCREEN CIVIL POST

removal is distinct

OTHER ACTIONS suspension ordinarily interim

reduction in rank is punitive demotion.

compulsory retirement may be punitive or non-punitive probation/temporary exit requires the foundation test.

CONSTITUTIONAL BASIS / ARTICLE

- PENALTIES dismissal may carry future-employment consequences under rules.
- removal is distinct
- reduction in rank is punitive demotion.

POWER / PROCEDURE

- TERMINATION SIMPLICITER form is not decisive; motive and foundation determine punitive character.
- OTHER ACTIONS suspension ordinarily interim
- compulsory retirement may be punitive or non-punitive probation/temporary exit requires the foundation test.

CHECK / LIMIT

- STATUS SCREEN civil post → Article 311 may apply.
- constitutional office → special constitutional code first.
- statutory-body/PSU employee → employer, statute and rules control.

FEDERAL / RIGHTS IMPACT

- contractor/outsourced worker → contract, labour law and real-control facts.
- TRAP public employment, office under State and civil post are not interchangeable labels.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP public employment, office under State and civil post are not interchangeable labels.

06

STAGE 06

ARTICLE 312 AND THE ALL-INDIA SERVICES FEDERAL BRIDGE

ARTICLE 312 AND THE ALL-INDIA SERVICES FEDERAL BRIDGE

CREATION ROUTE

RAJYA SABHA RESOLUTION BY AT LEAST TWO-THIRDS OF MEMBERS

PARLIAMENT MAY CREATE BY LAW.

EXISTING AIS

INDIAN FOREST SERVICE.

INDIAN FOREIGN SERVICE IS A CENTRAL CIVIL SERVICE, NOT

DUAL CONTROL

CREATION ROUTE

Rajya Sabha resolution by at least two-thirds of members present and voting that national interest → Parliament may create by law. → EXISTING AIS

CONSTITUTIONAL BASIS / ARTICLE

- CREATION ROUTE
- Rajya Sabha resolution by at least two-thirds of members present and voting that national interest requires one or more new All-India Services
- Parliament may create by law.

POWER / PROCEDURE

- EXISTING AIS
- Indian Forest Service.
- Indian Foreign Service is a Central Civil Service, not AIS.

CHECK / LIMIT

- DUAL CONTROL
- Union recruitment/cadre framework + State posting and field administration
- shared career and deputation system.

FEDERAL / RIGHTS IMPACT

- AIS constitutionally enabled under Article 312; no post below district judge; not established.
- FEDERAL GAIN national standards and integration.
- FEDERAL RISK deputation conflict, centralisation and weak State voice.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FEDERAL RISK deputation conflict, centralisation and weak State voice.

07

STAGE 07

ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS

ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS

ARTICLE 335

SC/ST CLAIMS CONSIDERED CONSISTENTLY WITH ADMINISTRATIVE EFFICIENCY, SUBJECT TO

NEUTRALITY NON-PARTISANSHIP + CONSTITUTIONAL COMMITMENT + CANDID ADVICE +

ANONYMITY MINISTERIAL RESPONSIBILITY PROTECTS ORDINARY INTERNAL ADVICE, BUT RECORDKEEPING

ETHICS STACK INTEGRITY

POLITICAL NEUTRALITY

ACCOUNTABILITY TRACKS DEPARTMENTAL DISCIPLINE

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 335
- SC/ST claims considered consistently with administrative efficiency, subject to the constitutional proviso on qualifying marks/standards for promotion.
- NEUTRALITY non-partisanship + constitutional commitment + candid advice + lawful implementation.

POWER / PROCEDURE

- ANONYMITY ministerial responsibility protects ordinary internal advice, but recordkeeping, courts,
- RTI law and accountability rules create lawful disclosure routes.
- ETHICS STACK integrity

CHECK / LIMIT

- political neutrality
- ACCOUNTABILITY TRACKS departmental discipline
- criminal law

FEDERAL / RIGHTS IMPACT

- legislative/judicial review.
- LIMIT neutrality is not resistance to lawful elected policy or silence about illegality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT neutrality is not resistance to lawful elected policy or silence about illegality.

07

STAGE 07 ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS

ARTICLE 335, NEUTRALITY, ANONYMITY AND PUBLIC-SERVICE ETHICS ARTICLE 335 SC/ST CLAIMS CONSIDERED CONSISTENTLY WITH ADMINISTRATIVE EFFICIENCY, SUBJECT TO NEUTRALITY NON-PARTISANSHIP + CONSTITUTIONAL COMMITMENT + CANDID ADVICE + ANONYMITY MINISTERIAL RESPONSIBILITY PROTECTS ORDINARY INTERNAL ADVICE, BUT RECORDKEEPING ETHICS STACK INTEGRITY POLITICAL NEUTRALITY ACCOUNTABILITY TRACKS DEPARTMENTAL DISCIPLINE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ARTICLE 335 - SC/ST claims considered consistently with administrative efficiency, subject to the constitutional proviso on qualifying marks/standards for promotion. - NEUTRALITY non-partisanship + constitutional commitment + candid advice + lawful implementation.	- ANONYMITY ministerial responsibility protects ordinary internal advice, but recordkeeping, courts, - RTI law and accountability rules create lawful disclosure routes. - ETHICS STACK integrity	- political neutrality - ACCOUNTABILITY TRACKS departmental discipline - criminal law	- legislative/judicial review. - LIMIT neutrality is not resistance to lawful elected policy or silence about illegality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT neutrality is not resistance to lawful elected policy or silence about illegality.

08

STAGE 08 SPECIALISTS, LATERAL ENTRY, TRAINING AND PERFORMANCE MANAGEMENT

SPECIALISTS, LATERAL ENTRY, TRAINING AND PERFORMANCE MANAGEMENT GENERALIST VALUE COORDINATION, FIELD EXPERIENCE AND WHOLE-OF-GOVERNMENT PERSPECTIVE. SPECIALIST VALUE TECHNICAL DEPTH, REGULATORY KNOWLEDGE AND DOMAIN CONTINUITY. LATERAL ENTRY POST-SPECIFIC RECRUITMENT MODE EQUALITY, RECRUITMENT RULES, UPSC-CONSULTATION QUESTION, RESERVATION, TENURE, CONFLICT AND MISSION KARMAYOGI COMPETENCY-BASED CAPACITY BUILDING + IGOT LEARNING INFRASTRUCTURE ROLE MAPPING CONTINUOUS LEARNING

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- GENERALIST VALUE coordination, field experience and whole-of-government perspective. - SPECIALIST VALUE technical depth, regulatory knowledge and domain continuity.	- LATERAL ENTRY post-specific recruitment mode → equality, recruitment rules, UPSC-consultation - question, reservation, tenure, conflict and cooling-off controls must be checked.	- MISSION KARMAYOGI competency-based capacity building + iGOT learning infrastructure - role mapping → continuous learning → workplace application.	- PERFORMANCE outcome + legality + process quality + citizen impact + team development. - LIMIT course completion or short contracts do not themselves prove better administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT course completion or short contracts do not themselves prove better administration.

09

STAGE 09 DISCIPLINE, VIGILANCE, CRIMINAL LAW AND REMEDY TRACKS

DISCIPLINE, VIGILANCE, CRIMINAL LAW AND REMEDY TRACKS CONDUCT BREACH CONDUCT RULE CCA INQUIRY PROPORTIONATE SERVICE PENALTY DEPARTMENTAL REMEDY. CRIME VIGILANCE OR CRIMINAL INVESTIGATION PROSECUTION UNDER COMPETENT LAW. ARTICLE 311 DOES NOT BAR INVESTIGATION OR TRIAL.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CONDUCT BREACH conduct rule → CCA inquiry → proportionate service penalty → departmental remedy.	Article 311 does not bar investigation or trial.	CAT where jurisdiction applies → High Court Division Bench review after L. Chandra Kumar (1997).	T.S.R. Subramanian (2013) → Civil Services Boards, tenure stability and written directions.
CORRUPTION / CRIME vigilance or criminal investigation → prosecution under competent law.	SERVICE DISPUTE	TRANSFER / ORAL ORDER PRESSURE	CORE BALANCE fair discipline protects both accountable government and honest administration.
- CONDUCT BREACH conduct rule → CCA inquiry → proportionate service penalty → departmental remedy. - CORRUPTION / CRIME vigilance or criminal investigation → prosecution under competent law.	- Article 311 does not bar investigation or trial. - SERVICE DISPUTE	- CAT where jurisdiction applies → High Court Division Bench review after L. Chandra Kumar (1997). - TRANSFER / ORAL ORDER PRESSURE	- T.S.R. Subramanian (2013) → Civil Services Boards, tenure stability and written directions. - CORE BALANCE fair discipline protects both accountable government and honest administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONDUCT BREACH conduct rule → CCA inquiry → proportionate service penalty → departmental remedy.

10

STAGE 10 TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE CAT INTERFACE ARTICLE 323A/ADMINISTRATIVE TRIBUNALS ACT ROUTE FOR COVERED SERVICE DISPUTES. L. CHANDRA KUMAR (1997) TRIBUNAL DECISIONS REMAIN SUBJECT TO T.S.R. SUBRAMANIAN (2013) CIVIL SERVICES BOARDS, TENURE STABILITY AND WRITTEN RECORDING OF TRANSFER PROBLEM FORMAL ARTICLE 311 SECURITY MAY COEXIST WITH REFORM PACKAGE STABLE BUT REVIEWABLE TENURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CAT INTERFACE	Civil Services Boards, tenure stability and written recording of oral directions.	merit and domain pathways fair discipline	VERDICT security without accountability breeds insulation; control without security breeds compliance.
Article 323A/Administrative Tribunals Act route for covered service disputes.	TRANSFER PROBLEM formal Article 311 security may coexist with informal pressure through posting control.	protected disclosure	
L. Chandra Kumar (1997) tribunal decisions remain subject to High Court judicial review.	REFORM PACKAGE stable but reviewable tenure	transparent appraisal	
T.S.R. Subramanian (2013)	written orders	reasoned transfers	

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONDUCT BREACH conduct rule → CCA inquiry → proportionate service penalty → departmental remedy.

10

STAGE 10 TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

TRIBUNALS, TRANSFER REFORM AND THE CASE-LAW ACCOUNTABILITY SPINE

CAT INTERFACE

ARTICLE 323A/ADMINISTRATIVE TRIBUNALS ACT ROUTE FOR COVERED SERVICE DISPUTES.

L. CHANDRA KUMAR (1997) TRIBUNAL DECISIONS REMAIN SUBJECT TO

T.S.R. SUBRAMANIAN (2013)

CIVIL SERVICES BOARDS, TENURE STABILITY AND WRITTEN RECORDING OF

TRANSFER PROBLEM FORMAL ARTICLE 311 SECURITY MAY COEXIST WITH

REFORM PACKAGE STABLE BUT REVIEWABLE TENURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CAT INTERFACE	Civil Services Boards, tenure stability and written recording of oral directions.	merit and domain pathways fair discipline	VERDICT security without accountability breeds insulation; control without security breeds compliance.
Article 323A/Administrative Tribunals Act route for covered service disputes.	TRANSFER PROBLEM formal Article 311 security may coexist with informal pressure through posting control.	protected disclosure	
L. Chandra Kumar (1997) tribunal decisions remain subject to High Court judicial review.	REFORM PACKAGE stable but reviewable tenure	transparent appraisal	
T.S.R. Subramanian (2013)	written orders	reasoned transfers.	
CONSTITUTIONAL BASIS / ARTICLE - CAT INTERFACE - Article 323A/Administrative Tribunals Act route for covered service disputes. L. Chandra Kumar (1997) tribunal decisions remain subject to High Court judicial review. - T.S.R. Subramanian (2013)	POWER / PROCEDURE - Civil Services Boards, tenure stability and written recording of oral directions. - TRANSFER PROBLEM formal Article 311 security may coexist with informal pressure through posting control. - REFORM PACKAGE stable but reviewable tenure - written orders	CHECK / LIMIT - merit and domain pathways fair discipline - protected disclosure - transparent appraisal - reasoned transfers.	FEDERAL / RIGHTS IMPACT VERDICT security without accountability breeds insulation; control without security breeds compliance.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT security without accountability breeds insulation; control without security breeds compliance.

11

STAGE 11 UPSC TRAPS, SUPPORTING PYQ AND QUALIFIED ANSWER SYNTHESIS

UPSC TRAPS, SUPPORTING PYQ AND QUALIFIED ANSWER SYNTHESIS

PRELIMS FIREWALL

ARTICLE 309 LEGISLATURE FIRST

RULES ARE SUBORDINATE LEGISLATION PLEASURE NOT PERSONAL

ARTICLE 311 COVERS CIVIL POSTS THREE EXCEPTIONS EXACTLY

WRITTEN REASONS FOR CLAUSE (B)

STATE SECURITY FOR CLAUSE (C)

RAJYA SABHA GATEWAY FOR AIS

PRELIMS FIREWALL

→

Article 309 legislature first

→

rules are subordinate legislation pleasure not personal

→

Article 311 covers civil posts three exceptions exactly

→

written reasons for clause (b)

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- Article 309 legislature first
- rules are subordinate legislation pleasure not personal
- Article 311 covers civil posts three exceptions exactly

POWER / PROCEDURE

- written reasons for clause (b)
- State security for clause (c)
- Rajya Sabha gateway for AIS
- IFS not AIS

CHECK / LIMIT

- AJS enabled, not established
- CAT review survives.
- SUPPORTING 2020 GS-II ROUTE institutional quality and civil-service reform for democracy.
- MAINS SPINE permanent executive purpose → 309 rules → 310 pleasure

FEDERAL / RIGHTS IMPACT

- 311 fairness/exceptions → AIS federal bridge → Article 335
- neutrality/accountability → capacity and tenure reform.
- CONCLUSION professional autonomy is legitimate only inside constitutional responsibility.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONCLUSION professional autonomy is legitimate only inside constitutional responsibility.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — CLASSIFICATION OF SERVICES

PART B — CONSTITUTIONAL PROVISIONS (ARTS 308–314)

ALL-INDIA SERVICES (AIS)

IAS, IPS, IFOS (FOREST) — SERVE BOTH CENTRE &

MODERN UNION CLASSIFICATION USES GROUP A, GROUP B AND

THE OLDER CLASS I-IV AND GROUP D FRAMEWORK IS

GAZETTED STATUS DOES NOT ITSELF DEFINE CONSTITUTIONAL SERVICE OR

OPTIONAL DOCTRINE / CASE

- PART A — CLASSIFICATION OF SERVICES
- PART B — CONSTITUTIONAL PROVISIONS (Arts 308–314)
- All-India Services (AIS): IAS, IPS, IFoS (Forest) — serve both Centre & states by turns; recruited &
- Modern Union classification uses Group A, Group B and Group C .

ADVANCED LIMIT

- The older Class I-IV and Group D framework is historical
- gazetted status does not itself define constitutional service or Article 311 coverage.
- ICS → IAS and IP → IPS in 1947; IFoS created in 1966 as the third AIS.
- Up to 33⅓% of senior AIS posts filled by promotion from state services (via a UPSC-chaired selection committee).

COMPARATIVE NUANCE

- Laxmikant/ARC material supports Citizens' Charters by service-providing departments to state citizen entitlements.
- 2nd ARC's citizen-centric administration report backed the Sevottam model for service standards, grievance redress and delivery enablers.
- CAUTION: A Citizens' Charter publicly states services, timelines, standards, grievance channels and responsible officials.
- It is generally non-justiciable unless a separate law/service-guarantee statute makes a promise enforceable.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.